

FORM 70 R
REGISTRAR'S CERTIFICATE
(DIVORCE ACTION)

(General heading)

(Court seal)

REGISTRAR'S CERTIFICATE

(Instructions: If appropriate box at left cannot be checked, check box in right margin and describe deficiency in red by the box.)

The Registrar at _____ certifies that:

- | 1. | PRELIMINARY | Deficiency |
|-----|--|-------------------------------|
| (a) | ☐ The Respondent has been noted in default. | 1(a) ☐ |
| (b) | ☐ No Answer has been filed by the Respondent. | 1(b) ☐ |
| | ☐ The Respondent's Answer has been withdrawn. | |
| | ☐ The Respondent's Answer has been struck out. | |
| (c) | ☐ A Central Divorce Registry clearance certificate has been received. | 1(c) ☐ |
| 2. | SERVICE | |
| (a) | ☐ Service is not required because the spouses have filed a joint petition. | 2(a) ☐ |
| | ☐ The Affidavit of Service has been filed. | |
| | ☐ A signed acknowledgement of services has been filed. | |
| (b) | ☐ The Respondent was served personally at (address) _____ | 2(b) ☐ |
| | ☐ The Respondent was served by substituted service. | |
| 3. | AFFIDAVITS | |
| (a) | ☐ An affidavit of the Petitioner has been filed on the motion. | 3(a) ☐ |
| (b) | ☐ An affidavit of the Respondent has been filed on the motion. | 3(b) ☐ |
| (c) | ☐ An affidavit of _____ has been on the motion. | 3(c) ☐ |
| (d) | ☐ The Notice of Motion indicates that oral evidence will be presented. | 3(d) ☐ |
| 4. | CLAIM FOR RELIEF | |
| (a) | ☐ The Petition contains only a claim for divorce. | 4(a) ☐ |
| | ☐ The Petition contains a claim for relief under an Act, other than a divorce, and refers to the Act in each claim. | |
| (b) | ☐ The Petition contains a claim for support or a division of property and sets out the nature and amount of relief | |

- claimed and the amount of support claimed for each dependent. 4(b) 🍏
- (c) 🍏 The Petition contains a claim for inclusion of terms of a separation agreement of previous court order and refers to the specific provisions to be included. 4(c) 🍏
5. **GROUND FOR DIVORCE**
The Petition claims divorce on this ground of
- (a) 🍏 separation since _____, and the Petitioner's Affidavit was sworn at least one year after that date. 5(a) 🍏
- (b) 🍏 adultery 5(b) 🍏
- (c) 🍏 cruelty 5(c) 🍏
6. **PROOF OF MARRIAGE**
- (a) 🍏 A certificate of marriage or equivalent thereof from another jurisdiction has been filed, and particulars correspond to those in the Petition. 6(a) 🍏
- (b) 🍏 The Petition states that it is impossible to obtain a certificate of marriage or equivalent thereof from another jurisdiction, and the Affidavit gives the date and place of marriage. 6(b) 🍏
7. **RESIDENCE**
- 🍏 The Petition indicates that the 7 🍏
- 🍏 petitioner
- 🍏 respondent
- has resided in Prince Edward Island since _____, a period of at least one year before the Petition was issued.
8. **CHILDREN**
- (a) 🍏 There are children of the marriage.
- 🍏 There are no children of the marriage.
- (b) 🍏 The Director of Child Protection has not intervened. 8(b) 🍏
- 🍏 The Family Court Counsellor has filed a report.
- 🍏 There has been no child advocate appointed.
- 🍏 There has been no counsel appointed for the child.
- 🍏 The Office of the Children's Lawyer has intervened.
9. **OTHER COURT PROCEEDINGS OR ORDERS**
- (a) 🍏 Family law proceedings or orders have been identified 9(a) 🍏
- (b) 🍏 Criminal proceedings or orders have been identified 9(b) 🍏
- (c) 🍏 Civil protection proceedings or orders have been identified 9(c) 🍏
10. **NOTICE TO PETITIONER**
- 🍏 The Petitioner has been informed of any deficiencies noted on this certificate and has requested the motion be submitted despite them. 10 🍏

DATE: _____ Issued by: _____
Registrar